SETTLEMENT AGREEMENT
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

RE: Q10C-4Q-C 16130532 – APWU #HQTG20160085 – DBCS staffing

Recently the parties met at Step 4 of the grievance/arbitration process to discuss the above referenced grievance. The primary issue in this dispute is whether the current Delivery Bar Code Sorter System (DBCS) normal staffing of two (2) clerks per machine should be a minimum requirement to address certain safety and ergonomic issues as identified by the APWU.

The parties are in agreement that pursuant to Article 14, Section 1 *"It is the responsibility of management to provide safe working conditions in all present and future installations and to develop a safe working force."* In accordance with the Employee and Labor Relations Manual (ELM), Section 891, *Authority, "The Postal Service complies with applicable federal laws, regulations, and OSHA guidance materials regarding ergonomics."*

The parties further agree that the 2012 JCIM, Article 37, page 76, *OCR – BCS – DBCS STAFFING* Questions and Answers, address the only exceptions to the normal staffing of two (2) Mail Processing Clerks on the DBCS at all times. The exceptions described in the JCIM Q&As must not be considered an alternative to the scheduling of 2 Mail Processing Clerks on the DBCS. During the periods described in the JCIM Q&As, the parties further agree the second Mail Processing Clerk may perform allied duties as assigned in the OCR-BCS-DBCS area.

This settlement agreement addresses minimum staffing, and is not intended to impact those offices where there have been agreements and past practices involving more than two clerks per machine (due to unique rotations or other local factors.)

To further this effort, the parties agree to schedule a special meeting of the Safety & Health Committee at the national level within ninety (90) days after the signing of this agreement. At the meeting, the Safety & Health Committee will discuss the establishment of a task force to investigate and address safety issues specific to the DBCS. This task force will include subject matter experts. Any case(s) held pending this national dispute will be resolved in accordance with this agreement and based on local fact circumstances.

Rickey R. Dean
Manager Contract Administration (APWU)
United States Postal Service

Date: 8/24/2016

Tony McKinnon
Director of Industrial Relations
American Postal Workers Union, AFL-CIO

Date: 8/24/2016